

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 861

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO THE DEPARTMENT OF COMMERCE; AMENDING SECTION 67-4703, IDAHO CODE, TO PROVIDE FOR CERTAIN POWERS AND DUTIES OF THE DEPARTMENT OF COMMERCE AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 67-4715, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE DUTIES AND POWERS OF THE TRAVEL AND CONVENTION INDUSTRY COUNCIL; AMENDING SECTION 67-4717, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE REGIONAL AND STATEWIDE GRANT PROGRAM; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 67-4703, Idaho Code, be, and the same is hereby amended to read as follows:

67-4703. POWERS AND DUTIES. The department of commerce shall have the power and it shall be its duty to engage in advertising the state of Idaho, its resources, both developed and undeveloped, its tourist resources and attractions, its agricultural, mining, lumbering and manufacturing resources, its health conditions and advantages, its scenic beauty and its other attractions and advantages; and in general either directly, indirectly or by contract do anything and take any action which will promote and advertise the resources and products of the state of Idaho, develop its resources and industries, promote tourist travel to and within the state of Idaho, and further the welfare and prosperity of its citizens.

The department shall also have the following duties when it deals with promoting economic development and tourism within the state:

(1) ~~Survey~~ To survey and investigate the social, economic and physical resources of the state, including land, water, minerals, facilities for power, transportation, communications, recreation, health, education and other resources and facilities; endeavor to aid the legislature and the citizens of the state of Idaho in formulating a program for the development and utilization of these resources and facilities, and for balancing our agricultural, timber and mining economy with industrial capacity. It shall cooperate with local and regional agencies within the state. It shall cooperate with like agencies of other states, with agencies maintained by private persons or corporations, and with agencies established or employed by the United States to promote the development of the country and the welfare of its people.

(2) To develop and promote a comprehensive international marketing plan for Idaho's products.

(3) To collect and compile reliable data for general dissemination which will tend to the development of the state of Idaho by inducing people and capital to come within our borders.

1 (4) ~~Keep~~ To keep accurate records and preserve all data collected by it,
 2 and from time to time prepare and submit to the governor and the legislature,
 3 reports, programs, recommendations and plans for the comprehensive, long-
 4 range development, conservation and use of all the resources of the state of
 5 Idaho. It shall make such special investigations as to resources, facili-
 6 ties, and other matters as may be required by the governor or the legisla-
 7 ture.

8 (5) ~~Coordinate~~ To coordinate those activities of local, state, federal
 9 and private agencies and departments when they deal with the promotion of
 10 Idaho's economic resources.

11 (6) To require and receive from the various executive departments and
 12 public officials of the state of Idaho such information as may be required by
 13 the division to enable it to fulfill its functions and carry out the purposes
 14 of this act.

15 (7) ~~Administer~~ To administer and perform any other related functions or
 16 activities assigned by the governor or the legislature.

17 (8) ~~Enter~~ To enter into interagency agreements with other state agen-
 18 cies in developing economic and community plans and programs.

19 (9) ~~Provide~~ To provide technical assistance to other state agencies
 20 upon request.

21 (10) ~~Contract~~ To contract with universities, consultants and other pub-
 22 lic and private agencies to develop plans and programs.

23 (11) ~~Prepare~~ To prepare a comprehensive economic development strategy.

24 (12) ~~Petition~~ To petition for and receive moneys such as grants or
 25 gifts, to be used for state or local planning and economic development activ-
 26 ities.

27 (13) To award grants pursuant to section 67-4717, Idaho Code, including
 28 to state institutions of higher education as defined in section 67-2332A,
 29 Idaho Code, for projects or programs that promote economic development or
 30 tourism within the state.

31 SECTION 2. That Section 67-4715, Idaho Code, be, and the same is hereby
 32 amended to read as follows:

33 67-4715. DUTIES AND POWERS OF THE COUNCIL. (1) Consistent with the
 34 general purposes of this chapter, the council shall advise the department
 35 upon the establishment of policies to be followed in the accomplishments of
 36 the purposes of this act.

37 (2) In the administration of this act, the council shall have the fol-
 38 lowing duties, authorities and powers:

39 (a) To review and recommend acceptance or denial of local grant re-
 40 quests submitted by nonprofit groups or organizations and state insti-
 41 tutions of higher education, for uses consistent with the purposes of
 42 this act. Such power shall include the right to approve disbursal of
 43 the department moneys to such nonprofit groups and state institutions
 44 of higher education under the grant program created by section 67-4717,
 45 Idaho Code.

46 (b) To counsel and advise the department on matters concerning the pro-
 47 motion and marketing of Idaho tourism, including, but not limited to the
 48 following: (1) the type of promotion, (2) the media source of promo-

tion, (3) market areas for promotion and (4) areas for travel and industry emphasis.

(c) To encourage and assist in the coordination of the activities of persons, firms, associations, corporations, civic groups and governmental agencies engaged in publicizing, developing and promoting the scenic attractions and tourist advantages of the state.

(d) To recommend such action as the council deems necessary and advisable in order to stabilize and promote the travel industry and the overall economic development of the state so as to benefit the health and welfare of the public.

(e) To cooperate with any local, state, or national organization or agency, whether voluntary or created by the law of any state or by federal legislation, engaged in activities similar to the work of the council. The council may, through the department, enter into contracts and agreements with such organizations or agencies for carrying on a joint campaign of research, education and publicity.

(f) To adopt, rescind, modify and amend all necessary and proper orders, resolutions and regulations for the procedure and exercise of its powers and the performance of duties.

(g) To keep books, records and accounts of all its activities, which books, records and accounts shall be open to inspection and audit. Such books shall also be open to the public.

(h) To report annually its activities and expenditures to the economic advisory council created by section 67-4704, Idaho Code.

SECTION 3. That Section 67-4717, Idaho Code, be, and the same is hereby amended to read as follows:

67-4717. REGIONAL AND STATEWIDE GRANT PROGRAM. (1) There is hereby established within the state of Idaho a travel and convention industry grant program. Such program shall be administered jointly by the council and the department. The source of funding for the program shall be from the assessment imposed by section 67-4718, Idaho Code.

(2) Fifty percent (50%) of all funds derived from this act, less one-half (1/2) of the administrative costs, shall be returned to local nonprofit organizations having as their primary purpose the promotion of travel and conventions within a planning region, to expend for the promotion of travel and conventions within their area. Each planning region shall be awarded grants totaling an amount equal to the regional proportion of one-half (1/2) the total sum raised by the assessment imposed by section 67-4718, Idaho Code. No allocations to a planning region shall lapse, but shall be continuously available for use for promotion purposes within the planning region.

(3) The remaining fifty percent (50%) of all funds derived from this act, less one-half (1/2) of the administrative costs, shall be expended by the department for the promotion and development of statewide travel and convention programs and to fund state institutions of higher education as defined in section 67-2332A, Idaho Code, to promote economic development within the state. The department shall be counseled and advised in its creation and execution of such programs by the council as provided by section 67-4712, Idaho Code.

1 SECTION 4. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.